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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.8805 of 2026

Muhammad Arif Ch.

Versus

Syed Ulfat Hussain Mashhadi and others

JUDGMENT

Date of hearing	26.02.2026
Petitioner by:	Mr. Muhammad Touqir Nasir, Advocate.
Respondents No.1 by:	Syed Muhammad Ali Abdullah, Advocate.

RAHEEL KAMRAN, J.: Through this Constitutional Petition instituted under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has called in question the validity of order dated 13.01.2026 passed by the Additional District Judge, Lahore, whereby the civil revision preferred by respondent No.1 was accepted and in consequence thereof, order dated 06.01.2025 of the Civil Judge, Lahore was set aside.

2. Facts of the case, precisely are that respondent No.1 Syed Ulfat Hussain Mashhadi instituted a suit on 17.08.2020 against the petitioner and respondent No.2 seeking declaration, permanent injunction and cancellation of documents. The case set up in the plaint was that respondent No.1 had purchased Plot No.53, Block-J, Phase-I, measuring 20 marla, situated in Formanites Housing Scheme, Lahore (respondent No.2), through an agreement dated 11.09.1997 on instalments basis. It was averred that he regularly paid the agreed instalments as well as development and other allied charges, whereupon respondent No.2 issued allotment letter bearing Ref. No.226842252 dated 30.08.2013. The plot was subsequently demarcated and possession letter bearing Ref. No.226842249 dated 30.08.2013 was also

issued in his favour. It was further pleaded that the plaintiff later came to know that defendant No.1 (the present petitioner) had procured/prepared a false and forged allotment letter bearing Ref. No.2268521549 dated 26.02.2020 in respect of the same plot, which according to him, was illegal, unlawful, fraudulent and of no legal effect upon his proprietary and possessory rights in the suit property.

The petitioner/defendant No.1 contested the suit by filing written statement on 09.09.2020, asserting that he was the lawful owner in possession of the subject plot on the strength of an allotment letter issued by respondent No.2. Respondent No.2 also filed its written statement acknowledging the earlier agreement with the plaintiff, however it was asserted that the plaintiff had failed to fulfill the terms and conditions thereof, as a consequence whereof his allotment was cancelled and the plot in question was re-allotted to the petitioner. On the basis of the divergent pleadings, issues were framed and the parties proceeded to lead their evidence.

During the pendency of trial on 29.07.2024 the petitioner moved an application before the trial court seeking permission to place certain documents on record on the plea that the same could not be produced earlier along with the written statement. The application was opposed by respondent No.1, however, the Civil Judge vide order dated 06.01.2025 allowed the same subject to payment of costs of Rs.5,000/-, observing that adjudication on merits ought to be preferred over technical objections. The said order was challenged by respondent No.1 through a civil revision, which was accepted by the Additional District Judge vide impugned order dated 13.01.2026. Hence, this Constitutional Petition.

3. Learned counsel for the parties were heard at length and the documents annexed with the petition have been perused with their able assistance.

4. The pivotal question requiring determination is whether the trial court exercised its discretion lawfully and judiciously in permitting the petitioner to place certain documents on record at a stage subsequent to

framing of issues and partial recording of evidence and whether the revisional Court was justified in interfering with that discretionary order. It is by now a settled canon of civil jurisprudence that procedural law is intended to serve as a handmaid to justice and not as an instrument to defeat adjudication on merits. Courts have consistently deprecated an approach that elevates form over substance, particularly where no irreversible prejudice is demonstrated¹. Procedural prescriptions are subservient to substantive justice; unless strict adherence is mandated by considerations of public policy or fairness, substantive rights ought not to be sacrificed at the altar of technical rigidity.

5. Order XIII Rule 1 of the Code of Civil Procedure, 1908 (CPC) obliges the parties to produce documentary evidence at the first hearing of the suit. The object of this provision is to ensure orderly conduct of proceedings and to prevent surprise or unfair advantage. However, Rule 2 of Order XIII CPC provides a remedial mechanism by empowering the Court to receive documentary evidence at a subsequent stage, provided “good cause” is shown and reasons are recorded. The expression “good cause” is of wider amplitude and is to be construed liberally in furtherance of justice. The legislative intent is not to penalize parties for inadvertent omissions, but to prevent fraud and abuse of process. The Supreme Court of Pakistan in *“Messrs Bisvil Spinners (Pvt.) Ltd. v. Pakistan through Secretary, Ministry of Finance, Islamabad and 2 others”* (PLD 1992 SC 96) held that documentary evidence could be examined or relied upon notwithstanding non-observance of certain formalities in taking it into possession. Similarly, in *“Anwar Ahmad v. Mst. Nafis Bano through Legal Heirs”* (2005 SCMR 152) it was observed by the Supreme Court that non-filing of documents along with the plaint has never been considered fatal in view of the enabling provisions of Order XIII Rule 2 CPC. In *“Muhammad Ijaz Ahmad Chaudhry v. Mumtaz Ahmad Tarar and others”* (2016 SCMR 1), the Supreme Court reiterated that every procedure which promotes the administration of justice is permissible

¹ *“Imtiaz Ahmad v. Ghulam Ali and others”* (PLD 1963 SC 382).

unless expressly prohibited by law and that genuine and relevant documents may be admitted at any stage to ensure that justice is done.

6. This Court has consistently adopted the same approach. In the case of *“Sardar Iftikhar-ud-Din Khan and 4 others v. Additional District Judge, D.G. Khan and another”* (2009 YLR 2265), it was observed that the object of Order XIII Rules 1 and 2 of CPC is to prevent fraud and not to penalize parties for non-production of documents in time. Likewise, in the case of *“Moazam Majeed Bajwa v. Tariq Munawar and others”* (2012 MLD 417), this Court emphasized that the determinative factors are the authenticity, relevance and necessity of the documents. For reference, relevant excerpt from the said judgment is reproduced hereunder:

“Admittedly, the petitioner produced his oral evidence and when the case was fixed for evidence of the respondents, then an application was made at his instance to produce the documents referred to in Paragraph 3 of the application. It is also not disputed that the said documents were neither produced nor relied upon as envisaged by Order XIII, Rule 1 of the Code of Civil Procedure, 1908. One cannot dispute the consequences of non-production of documents within the time mentioned in Order XIII, Rule 1 of Code of Civil Procedure, 1908. Rule 2 of the said order suggests that no documentary evidence in the possession or power of any party shall be received at any subsequent stage of proceedings unless "good cause" is shown to the satisfaction of the Court for non-production of the same. It is to be noted that expression "good cause" has been used in Order XIII, Rule 2 of the Code of Civil Procedure, 1908 and not the term "sufficient cause" as referred to by the learned trial Court. The expression "good cause" is wider expression than "sufficient cause" and has to be construed liberally. Nevertheless the party can be permitted to produce document if good cause has been shown at the instance of defaulting party at later stage. Though I find myself in agreement with the contention of the learned counsel for the respondents that prima facie there is nothing on record to disclose "good cause" within the meaning of Rule 2 of Order XIII of the Code of Civil Procedure, 1908 but nevertheless question for consideration in the attending circumstances before this Court is whether the learned trial Court rightly dismissed the application keeping in view the nature of documents in the absence of "good cause". It is not disputed that present petitioner wants to produce utility bills, original receipts regarding payment of loan advanced by House Building Finance Corporation and receipts of Excise and Taxation Department. In view of the matter, it cannot be said by any stretch

of imagination that the documents sought to be produced at the instance of the petitioner were private documents as argued at the instance of learned counsel for the respondents. Keeping in view the nature of documents, all the documents, undeniably are public documents. Since all the documents sought to be produced at the instance of the petitioner were public documents, therefore, the learned trial Court should have admitted said documents in evidence while allowing the application. I am fortified in my view by law laid down in IQBAL AHMAD and others v. KHURSHID AHMAD and others (1987 SCMR 744) in which an application made at the instance of the petitioner/pre-emptor was not only rejected by the Trial Court but also by the Appellate Court. However, this Court while deciding appeal allowed the pre-emptor to produce copy of Jamanbandi to prove his qualification having a superior right of pre-emption by accepting application under Order XLI, Rule 27 of the Code which order was assailed before the honourable apex Court. While declining leave to appeal, it was held that line of distinction and demarcation has to be made between, private documents and public documents. The public documents, genuineness of which cannot be disputed are to be admitted in evidence, even defaulting party failed to show any "good cause." Perusal of Paragraph 2 of Report under reference clearly suggests that the similar type of arguments were advanced before the apex Court which did not find favour and leave to appeal was declined. The position would have been different one if documents were not public documents in which eventuality existence and genuineness of documents could have been questioned. The documents sought to be produced, being public documents are per se admissible.

(Emphasis supplied by this Court).

7. The fundamental principle that guides the administration of civil justice is that controversies should be decided on their substantive merits rather than being disposed of on mere procedural infirmities. Litigants should not be deprived of their right to adjudication due to technical lapses alone. Although procedural requirements deserve due compliance, it is imperative to recognize that the overarching objective of achieving substantial justice through determination of disputes on merits must take precedence. The rigid application of procedural provisions in every circumstance, without regard to the facts and circumstances of each case, would defeat the very purpose for which these provisions were enacted. Courts must therefore exercise judicious discretion in balancing procedural

compliance with the imperatives of substantive adjudication, ensuring that technical non-compliance does not become an insurmountable barrier to the resolution of genuine disputes.

8. Adverting to the facts of the present case, both the petitioner and respondent No.1/plaintiff claim ownership of the plot in question on the basis of rival allotments and connected documents while respondent No.2—the housing scheme—supports the petitioner’s claim. The documents sought to be produced by the petitioner include *inter alia* a special power of attorney, agreement to sell, bank pay order, receipts, allotment and demarcation documents, site plan and sanction plan issued by the competent authority. Existence of documents i.e. ownership certificate, possession letter, demarcation letter/site plan in favour of the petitioner has been admitted by the respondent No.2 in para 8 of its written statement. In the peculiar circumstances of this case, these documents are not collateral or extraneous, rather, they go to the root of the controversy and are directly relevant to the determination of proprietary and possessory rights in respect of the suit property. The objection of respondent No.1 is essentially premised on delay in production of documents. Mere delay, however, unaccompanied by demonstrable prejudice or *mala fides*, cannot by itself defeat a request falling within the discretionary domain of the Court. Even if some of the documents are private in nature, their authenticity is a matter to be considered in trial and not a ground for rejection at threshold. Though the explanation put forth by the petitioner for his failure to present the documents at the relevant stage, may not be elaborate, the nature and relevance of documents coupled with absence of mala fide constitute sufficient ‘good cause’ within the meaning of Rule 2 of Order XIII of CPC. The element of fraud against which Order XIII is primarily directed is conspicuously absent in the present case as far as the prayer of the petitioner qua productions of documents is concerned. The trial court while allowing the application, remained cognizant of the lapse on part of the petitioner and as such imposed costs of Rs.5,000/-, which have admittedly been received by respondent No.1 albeit under protest. Imposition of costs is a recognized

mechanism to balance equities and compensate the opposite party for inconvenience. The discretion exercised by the trial court was thus neither arbitrary nor capricious, rather it was anchored in the well-settled principle that adjudication should be on merits and not on technicalities.

9. It is also of significance that the suit is still at the stage of recording of evidence. The respondent No.1/plaintiff shall have full opportunity to examine, contest and rebut the documents sought to be produced by the petitioner in accordance with law. The mere reception of documents on record does not amount to their automatic proof, nor does it foreclose the right of the opposite party to challenge their authenticity, admissibility or evidentiary value during trial. In these circumstances, no prejudice of an irreversible nature can be said to have been caused to respondent No.1. Rather, permitting production of relevant material at this stage would facilitate a comprehensive adjudication of the controversy on merits while preserving the procedural safeguards available to both sides.

10. For the foregoing reasons, this petition is allowed. The impugned order dated 13.01.2026 passed by the Additional District Judge, Lahore is set aside and the order dated 06.01.2025 passed by the Civil Judge, Lahore is restored. No order as to costs.

(RAHEEL KAMRAN)
JUDGE

Announced in the open Court on _____

JUDGE

Approved for reporting.

JUDGE